

4.—(1) This Act may be cited as the Corporate Bodies' Contracts Act, 1960. Short title,
repeal and
extent.

(2) The enactments mentioned in the Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(3) This Act shall not affect the law of Scotland or, subject to the provisions of section three of this Act, of Northern Ireland.

SCHEDULE

Section 4.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
35 & 36 Vict. c. 24.	The Charitable Trustees Incorporation Act, 1872.	Section eleven.
56 & 57 Vict. c. 39.	The Industrial and Provident Societies Act, 1893.	In section thirty-five, paragraphs (b), (c) and (d).

CHAPTER 47

Offices Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Regulations for securing health, safety and welfare of persons employed in offices.
2. Explanation of term "office".
3. Duties of employees with respect to things provided under regulations.
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5. Notification of accidents.
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9. Disclosure of trade secrets.
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An Act to make further and better provisions for health, welfare and safety in offices; and for purposes connected therewith.
[29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Regulations for securing health, safety and welfare of persons employed in offices.

1.—(1) The Secretary of State may make regulations specifying the standards as to structure, arrangement and operation to be applied in offices for the protection of the health, safety and welfare of persons employed therein, and, in particular—

- (a) for the provision of sufficient and suitable sanitary conveniences with separate accommodation for persons of each sex;
- (b) for the provision of adequate and suitable facilities for washing which shall include hot and cold water and soap and clean towels or other suitable means of cleaning and drying;
- (c) for the prevention of overcrowding;
- (d) for the provision of sufficient and suitable lighting in every part of the premises in which persons are working or passing;
- (e) for the provision of a standard of reasonable temperature;
- (f) for the provision of effective and suitable methods of maintaining adequate ventilation;
- (g) for the provision of adequate and suitable accommodation for clothing not worn by employees during working hours;
- (h) for ensuring that all offices shall be kept clean;
- (i) to provide for efficient means of escape in the event of fire;
- (j) to ensure the provision of adequate supplies of drinking water;
- (k) for the maintenance of adequate and suitable first-aid equipment;
- (l) for the regular inspection and maintenance of electrical equipment;
- (m) to provide for the fencing of dangerous parts of any machinery or equipment used in offices.

(2) The Secretary of State may provide by regulations for restricting the employment of women in offices after childbirth.

(3) Regulations under this section—

- (a) may impose obligations, restrictions and prohibitions on employers of persons employed in offices, on such persons themselves, and on others;
- (b) may make different provision to meet different circumstances;
- (c) may provide for any incidental, supplementary or consequential matters for which it appears to the Secretary of State requisite or expedient to provide for the purposes of the regulations.

(4) Before making any regulations under this section, the Secretary of State shall consult such organisations as appear to him to represent the interests concerned.

(5) Regulations under this section shall be made by statutory instrument, and no regulations shall be made thereunder unless a draft thereof has been laid before Parliament and approved by a resolution of each House of Parliament.

(6) A person who contravenes any provision of regulations under this section shall be guilty of an offence:

Provided that in any proceedings taken for any such contravention it shall be a defence for the person charged to prove that he used all due diligence to secure compliance with the provision.

2. For the purposes of this Act the expression "office" includes any room of which the substantial use is for clerical work, including book-keeping, filing, typing, duplicating, machine calculating, drawing, the editorial preparation of matter for publication in print, the sorting and carrying of papers, telephone operating, and the handling of money, except any room in premises of which the substantial use is as a private residence or for private domestic purposes.

Explanation
of term
"office".

3.—(1) Any person employed in an office who wilfully interferes with or misuses any equipment, appliance, facilities or other thing provided in pursuance of regulations under section one of this Act shall be guilty of an offence.

Duties of
employees
with respect
to things
provided
under
regulations.

(2) Nothing in this section shall be taken as limiting the power conferred by section one of this Act to make by regulations any such provision as is therein mentioned, including further provision as to matters which are the subject of this section.

4.—(1) There shall be kept posted at a prominent place accessible to all persons employed at any office a copy of any prescribed abstract of this Act and a copy of any prescribed abstract of regulations made under section one of this Act.

Posting of
abstract of
Act and of
regulations.

(2) The abstract posted in accordance with subsection (1) of this section shall be posted in such a position as to be conveniently read by persons employed in the premises and shall be maintained in a legible condition.

(3) If any person pulls down, injures or defaces any abstract posted in pursuance of this section, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding five pounds.

(4) The occupier of any office in respect of which there is a contravention of any of the provisions of subsection (1) or subsection (2) of this section shall be guilty of an offence:

Provided that, in any proceedings taken for a contravention of any such provision, it shall be a defence for the person charged to prove that he used all due diligence to secure compliance with the provision.

**Notification
of accidents.**

5.—(1) Subject to the provisions of this section, where any accident occurs in an office which either—

(a) causes loss of life to a person employed in the premises;
or

(b) disables any such person for more than three days from earning full wages at the work at which he was employed,
written notice of the accident, in the prescribed form and accompanied by the prescribed particulars, shall forthwith be sent by the occupier to the local authority in whose area the office is situated.

1 Edw. 8 & 1
Geo. 6. c. 67.

(2) No report need be sent under this section of an accident of which notice is required to be sent to the inspector for the district under section sixty-four of the Factories Act, 1937, and a report under this section of an accident in an office which is within the close, curtilage or precincts of premises constituting a factory as defined in that Act shall be sent to the said inspector, and not to the local authority.

2 & 3 Eliz. 2.
c. 70.

(3) No report need be sent under this section of an accident in an office to which section one hundred and sixteen of the Mines and Quarries Act, 1954 (which requires the notification of accidents in mines and quarries), applies.

(4) A person who contravenes any provision of this section shall be guilty of an offence:

Provided that, in any proceedings taken for any such contravention consisting in a failure to give written notice of such an accident, it shall be a defence for the person charged to prove that he was not aware that the accident had occurred.

6.—(1) Subject to the provisions of sections seven and eight of this Act, it shall be the duty of a local authority to enforce within their area the provisions of this Act and of any regulations made under section one thereof, and accordingly— Enforcement of Act by local authorities.

(a) any officer of the authority duly authorised in that behalf may, after producing (if so required) some duly authenticated document showing that he is so authorised, enter at all reasonable hours any office, or any premises which he has reasonable cause to believe to be an office, for the purpose of making such examinations and enquiries as may be necessary to ascertain whether the provisions of this Act and of regulations made under section one thereof are complied with; and

(b) in England and Wales the authority shall have power to institute proceedings against any person for an offence under this Act.

(2) Any person who obstructs an officer of a local authority in the exercise of his powers under this section shall be guilty of an offence.

7.—(1) This section applies to any office which forms part of a factory as defined in section one hundred and fifty-one of the Factories Act, 1937, or of any such premises as are described in section one hundred and three, section one hundred and four or subsection (1) of section one hundred and five of that Act, and to any office which is situated within the close, curtilage or precincts of premises constituting a factory as so defined. Enforcement of Act as respects offices in factories.

(2) The provisions of this Act and, save in so far as they relate to sanitary conveniences or to the employment of women after childbirth, the provisions of any regulations made under section one of this Act shall, in the case of offices to which this section applies, be enforced by inspectors appointed by the Minister of Labour under section one hundred and twenty-two of the Factories Act, 1937; and—

(a) the Minister of Labour may regulate the cases and manner in which inspectors so appointed are to execute and perform their powers and duties under this section;

(b) an inspector so appointed may, after producing (if so required) the certificate of appointment issued to him under section one hundred and twenty-five of the said Act of 1937, enter at all reasonable hours any office to which this section applies, or any premises which he has reasonable cause to believe to be an office to which this section applies, for the purpose of making such examinations and inquiries as may be necessary to ascertain whether the said provisions are complied with;

- (c) any person who obstructs an inspector so appointed in the exercise of his powers under this section shall be guilty of an offence.

(3) An inspector appointed as aforesaid, if so authorised in writing under the hand of the Minister of Labour, may, although he is not of counsel, or a solicitor, prosecute or conduct before a magistrates' court (or, in Scotland, the sheriff court) any proceeding arising under this Act with respect to any office to which this section applies or with respect to the exercise, or attempted exercise, by him of any power conferred on him by this section.

(4) It shall not be an objection to the competency of an inspector to give evidence in any proceeding instituted in Scotland in pursuance of the last foregoing subsection that the proceeding is brought at his instance or conducted by him.

Enforcement
of Act as
respects office
at mines and
quarries.

8.—(1) This section applies to any office which, for the purposes of the Mines and Quarries Act, 1954, forms or is deemed to form part of a mine or quarry within the meaning of that Act.

(2) The provisions of this Act and of any regulations made under section one of this Act shall, in the case of offices to which this section applies, be enforced by inspectors appointed by the Minister of Power under section one hundred and forty-four of the Mines and Quarries Act, 1954, or such other officers of the Ministry of Power as may be authorised in that behalf in writing under the hand of the Minister of Power; and—

- (a) the Minister of Power may regulate the cases and manner in which inspectors so appointed and other officers so authorised are to execute and perform their powers and duties under this section;
- (b) an inspector so appointed or officer so authorised may, after producing (if so required) the instrument by which he was so appointed or, as the case may be, his said written authority, enter at all reasonable hours any office to which this section applies, or any premises which he has reasonable cause to believe to be an office to which this section applies, for the purpose of making such examinations and inquiries as may be necessary to ascertain whether the said provisions are complied with;
- (c) any person who obstructs an inspector so appointed or an officer so authorised in the exercise of his powers under this section shall be guilty of an offence.

Disclosure
of trade
secrets.

9. If any person who, in pursuance of powers conferred by this Act, is admitted into any office discloses to any person any information obtained by him in that office with regard to the trade or business carried on by the occupier thereof he shall, unless such disclosure was made in the performance of his duty, be guilty of an offence and liable on summary conviction to a

fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

10.—(1) A person who, by reason of the terms of an agreement or lease relating to any premises, is prevented from carrying out in those premises any structural or other alterations which are necessary to enable him to comply with the provisions of any regulations made under section one of this Act may apply to the county court, and the court may make such an order setting aside or modifying any terms of the agreement or lease as the court considers just and equitable in the circumstances of the case. Power of county court to modify agreements and apportion expenses.

(2) Where—

- (a) any structural or other alterations are required in any premises in order to comply with the provisions of any regulations made under section one of this Act, and
- (b) any person interested in the premises alleges that the whole or part of the expenses of the alterations ought to be borne by some other person having an interest therein,

the first mentioned person may apply to the county court; and the court may make such an order concerning the expenses or their apportionment as the court (having regard to the terms of any agreement or lease relating to the premises) considers just and equitable in the circumstances of the case.

(3) In the application of this section to Scotland for any reference to the county court there shall be substituted a reference to the sheriff.

11.—(1) A person guilty of an offence under this Act for which no express penalty is provided by this Act shall be liable on summary conviction to a fine not exceeding fifty pounds, and, if the contravention in respect of which he is convicted is continued after the conviction, he shall, subject to subsection (2) of this section, be guilty of a further offence and liable on summary conviction to a fine not exceeding five pounds for each day on which the contravention was so continued. Offences.

(2) Where a person is convicted of an offence under this Act, the court may, in addition to or instead of inflicting a fine, order him, within the time specified in the order, to take such steps as may be so specified for remedying the matters in respect of which the contravention occurred; and where such an order is made, the person convicted shall not be liable under this Act in respect of the continuation of the contravention during the time specified therein.

(3) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar

officer of the body corporate, or any person purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

In this subsection "director", in relation to any body corporate which is established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking and whose affairs are managed by the members thereof, means a member of that body.

(4) Where a contravention of a provision of this Act or of regulations made under section one thereof for which a person is, by virtue of this section, liable on conviction to a penalty was due to an act or default of another person, then, whether proceedings are or are not taken against the first-mentioned person, that other person may be charged with, and convicted of, the contravention, and shall, on conviction, be liable to the same punishment as that to which the first-mentioned person is, on conviction, liable.

Expenses.

12. There shall be defrayed out of monies provided by Parliament any increase attributable to this Act in the sums payable out of monies so provided by way of Rate-deficiency Grant or Exchequer Equalisation Grant under the enactments relating to local government in England and Wales or in Scotland.

Interpretation.

13.—(1) In this Act—

"local authority" means—

(a) in England and Wales, save as respects the administrative county of London, the council of a county borough or county district;

(b) as respects the City of London, the Common Council, and, as respects the remainder of the administrative county of London, the council of a metropolitan borough;

(c) in Scotland, a county or town council;

"prescribed" means prescribed by order made by the Secretary of State by statutory instrument.

(2) Any reference in this Act to a contravention of any provision shall include a reference to a failure to comply with that provision.

Exclusion of places below ground to which Mines and Quarries Act applies.

14. Nothing in this Act shall apply to any place below ground to which the Mines and Quarries Act, 1954, applies.

Short title, commencement and extent.

15.—(1) This Act may be cited as the Offices Act, 1960, and shall come into force on the first day of January, nineteen hundred and sixty-two.

(2) This Act shall not extend to Northern Ireland.

